

24NNCV04036 24NNCV04036

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Case Number: 24NNCV04036 Hearing Date: September 8, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

DANIEL CITRON,

Plaintiff,

vs.

LISA C. L. CAMPBELL, individually

and as Executor of the Estate of Elizabeth Haller Citron, CITRON INVESTMENTS,

LLC and Does 1 through 20, inclusive,

Defendants.

Case

No.:

24NNCV04036

Hearing

Date:

September

8, 2026

Time:

8:30 a.m.

[Tentative]

Order RE: MOTION TO RECOVER ATTORNEYS' FEES

MOVING PARTY: Defendant Lisa C.L. Campbell

RESPONDING PARTY: Plaintiff Daniel Citron

The Court

considered the moving papers, opposition, and reply filed in connection with the instant motion.

BACKGROUND

On September 5, 2024, Plaintiff Daniel Citron ("Plaintiff") filed a Complaint against Defendants Lisa C.L. Campbell, individually and as Executor of the Estate of Elizabeth Hall Citron ("Defendant"), and Citron Investments, LLC.

On October 18, 2024, Defendant filed an answer to the complaint as executor of the estate of Elizabeth Hall Citron.

On October 25, 2024, Defendant filed an answer to the complaint as managing member and on behalf of Citron.

On July 29, 2025, the Court dismissed Defendant Citron Investments, LLC without prejudice.

On September 10, 2025, Plaintiff filed a first amended complaint ("FAC") against Defendant for conversion.

On September 12, 2025, the Court granted Plaintiff's request to dismiss Defendant, in her individual capacity only and without prejudice, from the FAC.

On November 18, 2025, Defendant filed a demurrer to the FAC and a motion to strike.

On March 18, 2026, the Court sustained Defendant's demurrer to the FAC without leave to amend.

On May 28, 2026, the Court ordered that the FAC be dismissed in its entirety, with prejudice, in favor of Defendant and against Plaintiff.

On June 23, 2026, Defendant filed the instant motion to recover attorneys' fees.

On June 26, 2026, Plaintiff filed a motion to strike and to tax costs.

On August 5, 2026, Plaintiff filed a notice of appeal as to the Court's judgment of dismissal after an order sustaining demurrer.

On August 25, 2026, Plaintiff filed an opposition to the motion to recover attorneys' fees.

On August 31, 2026, Defendant filed a reply.

EVIDENTIARY OBJECTIONS

Plaintiff objects to ¶¶ 6, 7, 12, and 14-20 to the Declaration of Defendant, ¶¶ 8, 13, 14, and 20-24 of the Declaration of Lani Goodman, ¶ 3 of the Declaration of Thomas Voegelé, ¶¶ 6 and 23 of the Declaration of Jeffrey Lewis, ¶ 4 of the Declaration of Ernest Mooney, and Exhibit C to the instant motion on various grounds including assumes facts not in evidence, speculation, impermissible opinion, improper legal conclusion, lack of personal knowledge, and relevance.

Plaintiff's objections are OVERRULED.

Defendant objects to ¶¶

4-9 and 11-43 to the Declaration of Robin Bentler, ¶¶ 2 and 4-17 of the Declaration of Plaintiff, and ¶¶ 2-12 of the Declaration of Christopher Mudler on various grounds including relevance, hearsay, lack of foundation, lack of personal knowledge, impermissible opinion, assumes facts not in evidence, argumentative, and speculation.

Defendant's objections

to the Declaration of Robin Bentler are OVERRULED as to ¶¶ 4-8, 11, 28-33, and 35-38 and SUSTAINED as to ¶¶ 9, 12-27, 34, and 39-42, as Bentler's legal conclusions as to the promissory notes, Defendant's potential conflicts of interest, and the Warwick Road encumbrance are irrelevant to the instant motion for attorneys' fees, constitute improper legal conclusions, and, at times, hearsay.

Defendant's objections to the Declaration of

Plaintiff are SUSTAINED, as the statements are irrelevant to the instant motion and, at times, constitute hearsay.

Defendant's objections to the Declaration of

Christopher Mudler are OVERRULED as to ¶¶ 4-6 and SUSTAINED as to ¶¶ 2-3 and 7-12, as the statements and exhibits pertaining to actions that could have been taken by counsel are irrelevant and speculative. Further, Mudler's opinions on the Court's rulings, Defendant's motivations for defending this action, Defendant's financial condition, and Bentler's declaration are irrelevant and speculative.

LEGAL STANDARD

"In any action on a contract, where

the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." (Civ. Code, § 1717, subd. (a).) "Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; but parties to actions or proceedings are entitled to their costs, as hereinafter provided." (Code Civ. Proc., § 1021.)

The lodestar method is the primary

means of calculating a reasonable fee award. (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 818-819.) The Court begins with the number of hours reasonably expended multiplied by a reasonable hourly rate and may adjust the resulting figure as appropriate. The Court retains broad discretion to reduce excessive, duplicative, or otherwise unreasonable billing. (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448; Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 395.)

DISCUSSION

Defendant moves for an order awarding attorneys' fees as costs incurred in the sum of \$101,601.50 as the prevailing party in the instant action and a further award of attorneys' fees and costs incurred in preparation of the instant motion in the amount of \$9,435.00 against Plaintiff.

A.
Plaintiff's
Appeal

Preliminarily, the Court notes that Plaintiff appealed the Court's decision sustaining the demurrer to the FAC without leave to amend.

Plaintiff requests that the Court defer determining or fixing the total amount of attorneys' fees until after the appeal is heard. (Opp., 14:26-28; 15:1.) However, "the filing of a notice of appeal does not deprive the trial court of jurisdiction to award attorney fees as costs post trial. Although a prevailing party at trial may not be the prevailing party after an appeal, it has been held that a motion for attorney fees is not premature despite the filing of a notice of appeal." (Bankes v. Lucas (1992) 9 Cal.App.4th 365, 368 [disapproved on other grounds in Lee v. Wells Fargo (2001) 88 Cal.App.4th 993, 998].) "[A]n award of attorney fees as costs is a collateral matter which is embraced in the action but is not affected by the order from which an appeal is taken." (Id. at p. 369.)

The Court accordingly turns to the merits.

B. Whether

the Action Arises Under the Agreement

Defendant moves for attorneys' fees on the grounds that Plaintiff filed the instant action pursuant to a Settlement Agreement and General Release (the "Agreement"), upon which Defendant is the prevailing party and within the meaning of Civil Code section 1717 has incurred attorneys' fees.

Plaintiff argues that Defendant is not entitled to attorneys' fees because the instant action is a conversion action in tort, not an action to enforce the Agreement. Plaintiff contends the attorneys' fees provision of the Agreement was not triggered, as it requires commencement of an enforcement proceeding, and therefore Civil Code section 1717 does not apply.

Defendant argues that each of Plaintiff's pleadings seek relief that violates the terms of the Agreement, and the attorneys' fees provision in the Agreement should apply to the current dispute.

Plaintiff, Defendant, and

their deceased mother, Elizabeth Citron, who was a trustee of the Citron Family Trust and managing member of Citron Investments, LLC at the time, entered into the Agreement in 2006. (Campbell Decl., ¶ 7, Exh. A.) Pursuant to the Agreement, Plaintiff relinquished his 49% membership interest in Citron Investments, LLC, in exchange for payment of \$600,000.00, and included specific and general releases. (Campbell Decl., ¶ 8, Exh. A.) The Agreement also included indemnification and attorneys' fees provisions. (Campbell Decl., ¶ 8, Exh. A.)

The Agreement's

indemnification provision states:

Each

party will protect, defend, indemnify, and hold harmless the others from and against any and all claims, costs, liabilities, and expenses arising from any material representation made in this Settlement Agreement which turns out to be untrue. Each Party will protect, defend, indemnify, and hold each other Party harmless against any third party's lawsuit, proceeding, action, or claim based on their alleged ownership of any claim described in the Action.

(Campbell Decl., Exh. A.)

The

Agreement's attorneys' fees provision provides:

Each

party to this Settlement Agreement will bear its own attorneys' fees, expenses, and costs that they incurred to prosecute or defend the Action or to negotiate this Settlement Agreement.

(Campbell Decl., Exh. A.)

Finally,

the Agreement includes an "Enforcement of Agreement" clause which states:

Should

it become necessary for any party to this Settlement Agreement to commence a legal proceeding for the purpose of enforcing the terms of this Settlement Agreement, the prevailing party in said proceeding shall be entitled to recover its attorneys' fees and costs in connection with that action.

(Campbell Decl., Exh. A.)

The

Agreement is signed by both Plaintiff and Defendant. (Campbell Decl., Exh. A.) Plaintiff did not include the Agreement in his original complaint or the FAC.

"Because

section 1717 only applies to an action 'on a contract,' the statute and its reciprocity rules do not apply to claims for fees for tort or other noncontract claims." (Hom v. Petrou (2021) 67 Cal.App.5th 459, 465.) "[T]he scope of a contractual right to attorney's fees on noncontract claims is a question of contractual intent." (Id. at p. 470.) "As to tort claims, the question of whether to award attorneys' fees turns on the language of the contractual attorneys' fee provision, i.e. whether the party seeking fees has 'prevailed' within the meaning of the provision and whether the type of claim is within the scope of the provision. This distinction between contract and tort claims flows from the fact that a tort claim is not 'on a contract' and is therefore outside the ambit of Civil Code section 1717." (Thompson v. Miller (2003) 112 Cal.App.4th 327, 335 [quoting Excess Electronix v. Heger Realty Corporation (1998) 64 Cal.App.4th 698] [internal citations omitted].) If an attorneys' fees provision is narrowly drawn, such as limiting fees only to actions "to

enforce" the agreement or "declare rights under it," it will not encompass independent tort claims. (Ibid.)

In the FAC, Plaintiff asserted one cause of action for conversion based on property he allegedly possessed as outlined in his creditor's claim, seeking to recover "losses from the Exempt Trust." (FAC, ¶ 35; September 5, 2024, Complaint, Exh. D.) Plaintiff alleged improper action against Defendant, claiming that she failed to segregate assets, improperly leveraged trust assets, and made unauthorized distributions against Plaintiff's interests. (FAC, ¶ 32.) California courts consistently classify conversion as a tort. (*Welco Electronics, Inc. v. Mora* (2014) 223 Cal.App.4th 202, 208; *Los Angeles Federal Credit Union v. Madatyan* (2012) 209 Cal.App.4th 1383, 1387; *Voris v. Lampert* (2019) 7 Cal.5th 1141, 1150.) Further, as mentioned above, the FAC did not include the Agreement and instead attacks Defendant's actions arising out of her role as executor of her mother's estate, supporting the classification of the action as one in tort, not contract. (FAC, ¶¶ 30-31, 36.) Therefore, the Court finds that Civil Code section 1717 does not apply and whether Defendant possesses a right to attorneys' fees is a matter of contractual intent. (*Hom*, supra, at p. 470.)

Here, the attorneys' fees provision applies to "necessary" actions "for the purpose of enforcing the terms of [the Agreement]." (*Campbell Decl.*, Exh. A.) The plain language is a more limiting, narrowly drawn attorneys' fees provision. California courts have declined to award attorneys' fees incurred by the prevailing party in cases involving tort claims where the attorneys' fees provision expressly limited recovery to fees incurred in seeking "to enforce" an agreement. (See *Casella v. SouthWest Dealer Services, Inc.* (2007) 157 Cal.App.4th 1127, 1162.) In contrast, where contracting parties utilize broad language that extends beyond mere enforcement of the contract, California courts will enforce the agreement under Code of Civil Procedure section 1021 to award fees to the prevailing party on tort claims. (See *Moallem v. Coldwell Banker Com. Group, Inc.* (1994) 25 Cal.App.4th 1827, 1831-1832 [holding that an attorneys' fees provision extending to any "legal action ... relating to" the contract is drafted broadly enough to encompass tort claims]; *Xuereb v. Marcus & Millichap, Inc.* (1992) 3 Cal.App.4th 1338, 1342-1343 [holding that an attorneys' fees provision applicable to any "lawsuit or other legal proceeding" to which "this Agreement gives rise" did not limit attorneys' fees to contract actions].) Because the Agreement's attorneys' fees provision applies only "for the purpose of enforcing the terms," the Court finds that the

Agreement's attorneys' fees provision is not triggered by Plaintiff's conversion cause of action based in tort.

Accordingly,
the Court denies Defendant's motion to recover attorneys' fees.

CONCLUSION

Based on the foregoing, the Court DENIES Defendant Lisa C.L. Campbell's motion to recover attorneys' fees.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: September 8, 2026

Sarah
J. Heidel

Judge
of the Superior Court